

SENATE No. 1072

The Commonwealth of Massachusetts

PRESENTED BY:

William J. Driscoll, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the head injury treatment services trust fund.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>3/6/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>3/6/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>3/12/2025</i>

SENATE No. 1072

By Mr. Driscoll, a petition (accompanied by bill, Senate, No. 1072) of William J. Driscoll, Jr., Dylan A. Fernandes and Paul R. Feeney for legislation to deposit money from fines collected from texting while driving into the head injury treatment services trust fund. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the head injury treatment services trust fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 59 of Chapter 10 of the General Laws, as appearing in the 2020
2 Official Edition , is hereby amended by striking out the word “and”, in line 4, and inserting after
3 the figure “24”, in line 4, the following words:- and Section 13B”

4 SECTION 2. Section 13B(b) of Chapter 90 of the General Laws, as appearing in the 2020
5 Official Edition, is hereby amended by adding, after the word “offense” the following words:-
6 provided that \$50 of each fine collected under this section shall be deposited into the head injury
7 treatment services trust fund.

8 SECTION 3. Section 20 of Chapter 90 of the General Laws, as appearing in the 2020
9 Official Edition, is hereby amended in the fourth paragraph by striking in the first sentence the
10 number “50” and replacing it with the number “100”; and further, by striking in the second
11 sentence the number “50” and replacing it with the number “100”.

SECTION 4. Section 24 (1)(a)(1) of Chapter 90 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

There shall be an assessment of \$250 against a person who is convicted of, is placed on probation for, or is granted a continuance without a finding for or otherwise pleads guilty to or admits to a finding of sufficient facts of operating a motor vehicle while under the influence of intoxicating liquor, marijuana, narcotic drugs, depressants or stimulant substances under this section; provided, however, that 100 per cent of the amount collected under this assessment shall be deposited monthly by the court with the state treasurer for who shall deposit it into the Head Injury Treatment Services (HITS) Trust Fund.

SECTION 5. Section 24 (1)(a)(1) of Chapter 90 of the General Laws, as appearing in the 2020 Official Edition, is further amended in the fourth paragraph by inserting at the end thereof the following:-

75 per cent of the fines collected in this section shall be deposited monthly by the court with the state treasurer for who shall deposit into the Head Injury Treatment Services Trust Fund.

SECTION 6. Section 24 (1)(a)(1) of Chapter 90 of the General Laws, as appearing in the 2020 Official Edition, is further amended in the fifth paragraph by inserting at the end thereof the following:-

75 per cent of the fines collected in this section shall be deposited monthly by the court with the state treasurer for who shall deposit it into the Head Injury Treatment Services (HITS) Trust Fund.

SECTION 7. Section 24 (1)(a)(1) of Chapter 90 of the General Laws, as appearing in the 2020 Official Edition, is further amended in the sixth paragraph by inserting at the end thereof the following:- 75 per cent of the fines collected in this section shall be deposited monthly by the court with the state treasurer for who shall deposit it into the Head Injury Treatment Services Trust Fund.

SECTION 8. Section 24 (1)(a)(1) of Chapter 90 of the General Laws, as appearing in the 2020 Official Edition, is further amended in the seventh paragraph by inserting at the end thereof the following:-

75 per cent of the fines collected in this section shall be deposited monthly by the court with the state treasurer for who shall deposit it into the Head Injury Treatment Services (HITS) Trust Fund.

SECTION 9. Section 24 (1)(a)(1) of Chapter 90 of the General Laws, as so appearing in the 2020 Official Edition, is further amended in the eighth paragraph by inserting at the end thereof the following:-

75 per cent of the fines collected in this section shall be deposited monthly by the court with the state treasurer for who shall deposit it into the Head Injury Treatment Services (HITS) Trust Fund.

SECTION 10. Section 24 (1)(a)(1) of Chapter 90 of the General Laws, as appearing in the 2020 Official Edition, is further amended in the ninth paragraph by inserting at the end thereof the following:-

75 per cent of the fines collected in this section shall be deposited monthly by the court with the state treasurer for who shall deposit it into the Head Injury Treatment Services (HITS) Trust Fund.

SECTION 11. Section 24 (1)(a)(1) of Chapter 90 of the General Laws, as appearing in the 2020 Official Edition, is further amended in the tenth paragraph by inserting at the end thereof the following:-

75 per cent of the fines collected in this section shall be deposited monthly by the court with the state treasurer for who shall deposit it into the Head Injury Treatment Services (HITS) Trust Fund.

SECTION 12. Section 24 (1)(a)(1) of Chapter 90 of the General Laws, as appearing in the 2020 Official Edition, is further amended in the eleventh paragraph by inserting at the end thereof the following:-

75 per cent of the fines collected in this section shall be deposited monthly by the court with the state treasurer for who shall deposit it into the Head Injury Treatment Services (HITS) Trust Fund.

SECTION 13. Section 20 of Chapter 90 of the General Laws, as appearing in the 2020 Official Edition, is further amended in the in the first sentence of the fourth paragraph by striking out the word “\$50” and inserting “\$75” and in the second sentence of the fourth paragraph by striking out the word “\$50” and inserting “\$75”.